

Court No. - 3

Case :- WRIT - C No. - 10031 of 2013

Petitioner :- M/S Shree Gopala Iron India Pvt. Ltd.

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Nripendra Mishra

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

Put up on 04.03.2013 as fresh.

Order Date :- 22.2.2013

PKB

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Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Nripendra Mishra

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

As prayed, put up day after tomorrow i.e. 6.3.2013 as fresh.

Order Date :- 4.3.2013

Atul kr. sri.

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Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

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Hon'ble Laxmi Kanta Mohapatra,J.
Hon'ble Mrs. Sunita Agarwal,J.

Heard Sri Mayank Agrawal, learned counsel appearing for the petitioner and Sri Nripendra Mishra, learned counsel appearing for the respondents.

The grievance of the petitioner is that initially it had taken a contract load of 5250 KVA and accordingly bills were raised by the respondents. Since the industry is not consuming more than 4250 KVA, an application was filed for reduction of the contract load from 5250 KVA to 4250 KVA. The said application having been rejected on 30th January, 2012 in Annexure-II, this writ petition has been filed challenging the said order.

Sri Mishra, learned counsel appearing for the respondents submits that the petitioner has filed several writ petitions in relation to arrear dues and interim orders have been passed in some of the cases. Therefore reduction in the contract load cannot be allowed so long as the arrear dues are not paid. Reference is made to Clause 4.49 of the Electricity Supply Code, 2005 by the learned counsel Sri Mishra appearing for the respondents.

In the impugned order, it is only stated that the petitioner having not paid the arrear dues and in view of the litigations pending before the High Court, prayer for reduction of contract load is not permissible. This order does not appear to be in consonance with the provisions contained in Clause 4.49 of Electricity Supply Code, 2005. The said Clause reads as under:

4.49 Permanent disconnection/release of connection/enhancement and reduction of Load where arrears disputed are stayed by Court/other Forum- *Where there is a stay order by any Court, Forum, Tribunal, or by Commission, staying the recovery of any dues by licensee, and during the operating period of any such order:*

- i. *If a consumer sells a premises and an application for release of new connection is made by the purchaser or;*
- ii. *[If any application for new connection, reconnection, enhancement or reduction of load is made by a consumer, or;*
- iii. *If any application for permanent disconnection is made by a consumer, the licensee shall release the new connection to such consumer and also permitting reconnection, reduction or enhancement of loads, as well as allow permanent disconnection, subject to-*
 - *submission of bank guarantee to the satisfaction of licensee, of equivalent amount and pending dues, by the applicant or owner, and]*
 - *agreement with licensee on terms of extension/invoking of guarantee, and*
 - *Levy of surcharge amount on pending dues.*

and the application of such consumers shall not be pending by the licensee.

The impugned order, as stated earlier is definitely not in terms of the said provision.

We, therefore, set aside the order in Annexure-II and direct the respondents to pass a fresh order on the application of the petitioner in accordance with law.

The writ petition is **disposed of** accordingly.

Order Date :- 14.3.2013

Arun K. Singh